

RED LEADER NEARS REMOVAL TO COAST

Dimock to Sign Warrant Today to Send Schneiderman to Trial in Los Angeles

The way was cleared yesterday in Federal Court here for the removal to Los Angeles of William Schneiderman, acting national head of the Communist party, for trial there on an indictment charging conspiracy to teach and advocate violent overthrow of the Government.

After a hearing in the Federal Court House at Foley Square, United States Commissioner Isaac Platt recommended to the District Court the issuance of a warrant of removal. Federal Judge Edward J. Dimock is to sign the warrant at 10:30 A. M. today.

Schneiderman, one of a dozen West Coast Communist chieftains indicted by a Federal grand jury in California last Tuesday, was returned to Federal Detention Headquarters for inability to post bail of \$75,000, which Commissioner Platt reduced from \$100,000 over the protests of United States Attorney Irving H. Saypol.

Carol King, who appeared as counsel for the Communist leader, told Commissioner Platt that Schneiderman would not contest removal to Los Angeles. She argued in vain for reduction of bail to \$10,000 and said after the hearing that she would renew her application to Judge Dimock today for bail in the lesser amount.

The Government contends that Schneiderman was brought here to direct operations from the Communist national office after the party's eleven-man politburo was convicted and seventeen second echelon officials were indicted.

Assails Bail as Excessive

Mrs. King, who told the court that Schneiderman had a wife and child in California and was not likely to run away, argued that there had been "nothing secretive about the fact that he was working at the headquarters here." Asserting that it was just as impossible for Schneiderman to get bail of \$75,000 "on his salary as a worker" as it would be to post \$100,000 "or a million dollars," Mrs. King cited court rulings that held that excessive bail could amount to denial of the right of bail.

The setting of such bail in this case, Mrs. King charged, was "more of a violation of the Constitution than anything he [Schneiderman] is alleged to have said or written or done."

Mr. Saypol retorted that Schneiderman was charged with "conspiring with eleven others previously convicted of a crime more outrageous than that of any individual malefactor—a crime directed against at all the people of the United States."

Declaring that Congress had reduced from ten to five years imprisonment the maximum penalty

of the Smith Act, under which the eleven Communist leaders were convicted in 1949 and the others are to be tried, Mrs. King said that "apparently Congress doesn't consider it such a heinous crime now as it did formerly."

At the opening of the hearing, Harry Alexander, who had represented Schneiderman at an earlier hearing here, withdrew as counsel, and a notice of appearance was filed by Mrs. King.

Fund Trustees Questioned

Meanwhile, four trustees of the Civil Rights Congress bail fund were taken from Federal jail cells and questioned by officials of the State Banking Department, which is investigating the operation of the fund that supplied bail for Communists and others.

Those questioned yesterday at the department offices, 270 Broadway, were Frederick Vanderbilt Field, wealthy "angel" of left wing causes; Dashiell Hammett, mystery story writer; Dr. W. Alphaeus Hunton and Abner Green, head of the American Committee for the Protection of the Foreign Born. Field is serving a nine-month term, the others six months, for contempt of court, having refused to name the individuals who made possible the bail of accused Communists. Four Communist leaders, convicted under the Smith Act, jumped \$80,000 bail posted by the fund and became fugitives.

The bail fund trustees are to be brought back for further questioning on Aug. 27, at which time Muriel Patterson, fund bookkeeper, also will be questioned. Donald H. Aiken, Deputy Banking Superintendent, conducted yesterday's examination behind closed doors.